

PRICE ONE PENNY.

CHILDREN IN PRISON
AND
OTHER CRUELITIES
OF
PRISON LIFE.

MURDOCH & CO.,
26, PATERNOSTER SQUARE
LONDON.

PRICE ONE PENNY.

CHILDREN IN PRISON
AND
OTHER CRUELITIES
OF
PRISON LIFE.

MURDOCH & CO.,
26, PATERNOSTER SQUARE
LONDON.

The Project Gutenberg eBook of Children in Prison and Other Cruelties of Prison Life

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Children in Prison and Other Cruelties of Prison Life

Author: Oscar Wilde

Release date: February 16, 2013 [eBook #42104]

Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/42104

Credits: Produced by Dianna Adair, Paul Clark and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK CHILDREN IN PRISON AND OTHER CRUELITIES OF PRISON LIFE ***

Transcriber's Note:

Every effort has been made to replicate this text as faithfully as possible. Some changes of spelling have been made. They are listed at the end of the text.

CHILDREN IN PRISON
AND
OTHER CRUELITIES
OF
PRISON LIFE.

MURDOCH & CO.,
26, PATERNOSTER SQUARE,
LONDON.

PUBLISHERS' NOTE.

The circumstance which called forth this letter is a woeful one for Christian England. Martin, the Reading warder, is found guilty of feeding the hungry, nursing the sick, of being kindly and humane. These are his offences in plain unofficial language.

This pamphlet is tendered to earnest persons as evidence that the prison system is opposed to all that is kind and helpful. Herein is shown a process that is dehumanizing, not only to the prisoners, but to every one connected with it.

Martin was dismissed. It happened in May last year. He is still out of employment and in poor circumstances. Can anyone help him?

February, 1898.

SOME CRUELITIES OF PRISON LIFE.

THE EDITOR OF THE DAILY CHRONICLE.

SIR,—I learn with great regret, through an extract from the columns of your paper, that the warder Martin, of Reading Prison, has been dismissed by the Prison Commissioners for having given some sweet biscuits to a little hungry child. I saw the three children myself on the Monday preceding my release. They had just been convicted, and were standing in a row in the central hall in their prison dress, carrying their sheets under the arms previous to their being sent to the cells allotted to them. I happened to be passing along one of the galleries on my way to the reception room, where I was to have an interview with a friend. They were quite small children, the youngest—the one to whom the warder gave the biscuits—being a tiny little chap, for whom they had evidently been unable to find clothes small enough to fit. I had, of course, seen many children in prison during the two years during which I was myself confined. Wandsworth Prison, especially, contained always a large number of children. But the little child I saw on the afternoon of Monday, the 17th, at Reading, was tinier than any one of them. I need not say how utterly distressed I was to see these children at Reading, for I knew the treatment in store for them. The cruelty that is practised by day and night on children in English prisons is incredible, except to those who have witnessed it and are aware of the brutality of the system.

People nowadays do not understand what cruelty is. They regard it as a sort of terrible mediæval passion, and connect it with the race of men like Eccelin da Romano, and others, to whom the deliberate infliction of pain gave a real madness of pleasure. But men of the stamp of Eccelin are merely abnormal types of perverted individualism. Ordinary cruelty is simply stupidity. It comes from the entire want of imagination. It is the result in our days of stereotyped systems, of hard-and-fast rules, of centralisation, of officialism, and of irresponsible authority. Wherever there is centralisation there is stupidity. What is inhuman in modern life is officialism. Authority is as destructive to those who exercise it as it is to

those on whom it is exercised. It is the Prison Board, with the system that it carries out, that is the primary source of the cruelty that is exercised on a child in prison. The people who uphold the system have excellent intentions. Those who carry it out are humane in intention also. Responsibility is shifted on to the disciplinary regulations. It is supposed that because a thing is the rule it is right.

The present treatment of children is terrible, primarily from people not understanding the peculiar psychology of a child's nature. A child can understand a punishment inflicted by an individual, such as a parent or guardian, and bear it with a certain amount of acquiescence. What it cannot understand is a punishment inflicted by Society. It cannot realise what Society is. With grown people it is, of course, the reverse. Those of us who are either in prison or have been sent there, can understand, and do understand, what that collective force called Society means, and whatever we may think of its methods or claims, we can force ourselves to accept it. Punishment inflicted on us by an individual, on the other hand, is a thing that no grown person endures or is expected to endure.

The child consequently, being taken away from its parents by people whom it has never seen, and of whom it knows nothing, and finding itself in a lonely and unfamiliar cell, waited on by strange faces, and ordered about and punished by the representatives of a system that it cannot understand, becomes an immediate prey to the first and most prominent emotion produced by modern prison life—the emotion of terror. The terror of a child in prison is quite limitless. I remember once in Reading, as I was going out to exercise, seeing in the dimly-lit cell, right opposite my own, a small boy. Two warders, not unkindly men, were talking to him, with some sternness apparently, or perhaps giving him some useful advice about his conduct. One was in the cell with him, the other was standing outside. The child's face was like a white wedge of sheer terror. There was in his eyes the mute appeal of a hunted animal. The next morning I heard him at breakfast-time crying, and calling to be let out. His cry was for his parents. From time to time I could hear the deep voice of the warder on duty warning him to keep quiet. Yet he was not even convicted of whatever little offence he had been charged with. He was simply on remand. That I knew by his wearing his own clothes, which seemed neat enough. He was, however, wearing prison socks and shoes. This showed that he was a very poor boy, whose own

shoes, if he had any, were in a bad state. Justices and magistrates, an entirely ignorant class as a rule, often remand children for a week, and then perhaps remit whatever sentence they are entitled to pass. They call this "not sending a child to prison." It is, of course, a stupid view on their part. To a little child, whether he is in prison on remand or after conviction, is a subtlety of social position he cannot comprehend. To him the horrible thing is to be there at all. In the eyes of humanity it should be a horrible thing for him to be there at all.

This terror that seizes and dominates the child, as it seizes the grown man also, is of course intensified beyond power of expression by the solitary cellular system of our prisons. Every child is confined to its cell for twenty-three hours out of the twenty-four. This is the appalling thing. To shut up a child in a dimly-lit cell for twenty-three hours out of the twenty-four is an example of the cruelty of stupidity. If an individual, parent or guardian, did this to a child he would be severely punished. The Society for the Prevention of Cruelty to Children would take the matter up at once. There would be on all hands the utmost detestation of whomsoever had been guilty of such cruelty. A heavy sentence would undoubtedly follow conviction. But our own actual society does worse itself, and to the child to be so treated by a strange abstract force, of whose claims it has no cognizance, is much worse than it would be to receive the same treatment from its father or mother, or someone it knew. The inhuman treatment of a child is always inhuman, by whomsoever it is inflicted. But inhuman treatment by Society is to the child the more terrible because there is no appeal. A parent or guardian can be moved, and let out the child from the dark lonely room in which it is confined. But a warder cannot. Most warders are very fond of children. But the system prohibits them from rendering the child any assistance. Should they do so, as Warder Martin did, they are dismissed.

The second thing from which a child suffers in prison is hunger. The food that is given to it consists of a piece of usually badly-baked prison bread and a tin of water for breakfast at half-past seven. At twelve o'clock it gets dinner, composed of a tin of coarse Indian meal stirabout, and at half-past five it gets a piece of dry bread and a tin of water for its supper. This diet in the case of a strong grown man is always productive of illness of some kind, chiefly of course diarrhœa, with its attendant weakness. In fact in a

big prison astringent medicines are served out regularly by the warders as a matter of course. In the case of a child, the child is, as a rule, incapable of eating the food at all. Anyone who knows anything about children knows how easily a child's digestion is upset by a fit of crying, or trouble and mental distress of any kind. A child who has been crying all day long, and perhaps half the night, in a lonely dimly-lit cell, and is preyed upon by terror, simply cannot eat food of this coarse, horrible kind. In the case of the little child to whom Warder Martin gave the biscuits, the child was crying with hunger on Tuesday morning, and utterly unable to eat the bread and water served to it for its breakfast. Martin went out after the breakfasts had been served and bought the few sweet biscuits for the child rather than see it starving. It was a beautiful action on his part, and was so recognised by the child, who, utterly unconscious of the regulation of the Prison Board, told one of the senior warders how kind this junior warder had been to him. The result was, of course, a report and a dismissal.

I know Martin extremely well, and I was under his charge for the last seven weeks of my imprisonment. On his appointment at Reading he had charge of Gallery C, in which I was confined, so I saw him constantly. I was struck by the singular kindness and humanity of the way in which he spoke to me and to the other prisoners. Kind words are much in prison, and a pleasant "Good morning" or "Good evening" will make one as happy as one can be in solitary confinement. He was always gentle and considerate. I happen to know another case in which he showed great kindness to one of the prisoners, and I have no hesitation in mentioning it. One of the most horrible things in prison is the badness of the sanitary arrangements. No prisoner is allowed under any circumstances to leave his cell after half-past five p.m. If, consequently, he is suffering from diarrhœa, he has to use his cell as a latrine, and pass the night in a most fetid and unwholesome atmosphere. Some days before my release Martin was going the rounds at half-past seven with one of the senior warders for the purpose of collecting the oakum and tools of the prisoners. A man just convicted, and suffering from violent diarrhœa in consequence of the food, as is always the case, asked this senior warder to allow him to empty the slops in his cell on account of the horrible odour of the cell and the possibility of illness again in the night. The senior warder refused absolutely; it was against the rules. The man, as far as he was concerned, had to pass the night in this dreadful

condition. Martin, however, rather than see this wretched man in such a loathsome predicament, said he would empty the man's slops himself, and did so. A warder emptying a prisoner's slops is, of course, against the rules, but Martin did this act of kindness to the man out of the simple humanity of his nature, and the man was naturally most grateful.

As regards the children, a great deal has been talked and written lately about the contaminating influence of prison on young children. What is said is quite true. A child is utterly contaminated by prison life. But the contaminating influence is not that of the prisoners. It is that of the whole prison system—of the governor, the chaplain, the warders, the lonely cell, the isolation, the revolting food, the rules of the Prison Commissioners, the mode of discipline as it is termed, of the life. Every care is taken to isolate a child from the sight even of all prisoners over sixteen years of age. Children sit behind a curtain in chapel, and are sent to take exercise in small sunless yards—sometimes a stone-yard, sometimes a yard at the back of the mills—rather than that they should see the elder prisoners at exercise. But the only really humanising influence in prison is the influence of the prisoners. Their cheerfulness under terrible circumstances, their sympathy for each other, their humility, their gentleness, their pleasant smiles of greeting when they meet each other, their complete acquiescence in their punishments, are all quite wonderful, and I myself learnt many sound lessons from them. I am not proposing that the children should not sit behind a curtain in chapel, or that they should take exercise in a corner of the common yard. I am merely pointing out that the bad influence on children is not, and could never be, that of the prisoners, but is, and will always remain, that of the prison system itself. There is not a single man in Reading Gaol that would not gladly have done the three children's punishment for them. When I saw them last it was on the Tuesday following their conviction. I was taking exercise at half-past eleven with about twelve other men, as the three children passed near us, in charge of a warder, from the damp, dreary stone-yard in which they had been at their exercise. I saw the greatest pity and sympathy in the eyes of my companions as they looked at them. Prisoners are, as a class, extremely kind and sympathetic to each other. Suffering and the community of suffering makes people kind, and day after day as I tramped the yard I used to feel with pleasure and comfort what Carlyle calls somewhere "the silent rhythmic charm of human companionship." In this as

in all other things, philanthropists and people of that kind are astray. It is not the prisoners who need reformation. It is the prisons.

Of course no child under fourteen years of age should be sent to prison at all. It is an absurdity, and, like many absurdities, of absolutely tragic results. If, however, they are to be sent to prison, during the daytime they should be in a workshop or schoolroom with a warder. At night they should sleep in a dormitory, with a night-warder to look after them. They should be allowed exercise for at least three hours a day. The dark, badly-ventilated, ill-smelling prison cells are dreadful for a child, dreadful indeed for anyone. One is always breathing bad air in prison. The food given to children should consist of tea and bread-and-butter and soup. Prison soup is very good and wholesome. A resolution of the House of Commons could settle the treatment of children in half an hour. I hope you will use your influence to have this done. The way that children are treated at present is really an outrage on humanity and common-sense. It comes from stupidity.

Let me draw attention now to another terrible thing that goes on in English prisons, indeed in prisons all over the world where the system of silence and cellular confinement is practised. I refer to the large number of men who become insane or weak-minded in prison. In convict prisons this is, of course, quite common; but in ordinary gaols also, such as that I was confined in, it is to be found.

About three months ago, I noticed amongst the prisoners who took exercise with me a young man who seemed to me to be silly or half-witted. Every prison of course has its half-witted clients, who return again and again, and may be said to live in the prison. But this young man struck me as being more than usually half-witted on account of his silly grin and idiotic laughter to himself, and the peculiar restlessness of his eternally twitching hands. He was noticed by all the other prisoners on account of the strangeness of his conduct. From time to time he did not appear at exercise, which showed me that he was being punished by confinement to his cell. Finally, I discovered that he was under observation, and being watched night and day by warders. When he did appear at exercise, he always seemed hysterical, and used to walk round crying or laughing. At chapel he had to sit right under the observation of two warders, who carefully watched him all the time. Sometimes he would bury his head in his hands,

an offence against the chapel regulations, and his head would be immediately struck up by a warder, so that he should keep his eyes fixed permanently in the direction of the Communion-table. Sometimes he would cry—not making any disturbance—but with tears streaming down his face and a hysterical throbbing in the throat. Sometimes he would grin idiot-like to himself and make faces. He was on more than one occasion sent out of chapel to his cell, and of course he was continually punished. As the bench on which I used to sit in chapel was directly behind the bench at the end of which this unfortunate man was placed, I had full opportunity of observing him. I also saw him, of course, at exercise continually, and I saw that he was becoming insane, and was being treated as if he was shamming.

On Saturday week last, I was in my cell at about one o'clock occupied in cleaning and polishing the tins I had been using for dinner. Suddenly I was startled by the prison silence being broken by the most horrible and revolting shrieks or rather howls, for at first I thought some animal like a bull or a cow was being unskilfully slaughtered outside the prison walls. I soon realised, however, that the howls proceeded from the basement of the prison, and I knew that some wretched man was being flogged. I need not say how hideous and terrible it was for me, and I began to wonder who it was who was being punished in this revolting manner. Suddenly it dawned upon me that they might be flogging this unfortunate lunatic. My feelings on the subject need not be chronicled; they have nothing to do with the question.

The next day, Sunday 16th, I saw the poor fellow at exercise, his weak, ugly, wretched face bloated by tears and hysteria almost beyond recognition. He walked in the centre ring along with the old men, the beggars and the lame people, so that I was able to observe him the whole time. It was my last Sunday in prison, a perfectly lovely day, the finest day we had had the whole year, and there, in the beautiful sunlight, walked this poor creature—made once in the image of God—grinning like an ape, and making with his hands the most fantastic gestures, as though he was playing in the air on some invisible stringed instrument, or arranging and dealing counters in some curious game. All the while these hysterical tears, without which none of us ever saw him, were making soiled runnels on his white swollen face. The hideous and deliberate grace of his gestures made him like an antic. He was a living grotesque. The other prisoners all watched

him, and not one of them smiled. Everybody knew what had happened to him, and that he was being driven insane—was insane already. After half-an-hour, he was ordered in by the warder, and, I suppose, punished. At least he was not at exercise on Monday, though I think I caught sight of him at the corner of the stone-yard, walking in charge of a warder.

On the Tuesday—my last day in prison—I saw him at exercise. He was worse than before, and again was sent in. Since then I know nothing of him, but I found out from one of the prisoners who walked with me at exercise that he had had twenty-four lashes in the cook-house on Saturday afternoon, by order of the visiting justices on the report of the doctor. The howls that had horrified us all were his.

This man is undoubtedly becoming insane. Prison doctors have no knowledge of mental disease of any kind. They are as a class ignorant men. The pathology of the mind is unknown to them. When a man grows insane, they treat him as shamming. They have him punished again and again. Naturally the man becomes worse. When ordinary punishments are exhausted, the doctor reports the case to the justices. The result is flogging. Of course the flogging is not done with a cat-of-nine-tails. It is what is called birching. The instrument is a rod; but the result on the wretched half-witted man may be imagined.

His number is, or was, A. 2. 11. I also managed to find out his name. It is Prince. Something should be done at once for him. He is a soldier, and his sentence is one of court-martial. The term is six months. Three have yet to run.

May I ask you to use your influence to have this case examined into, and to see that the lunatic prisoner is properly treated?

No report by the Medical Commissioners is of any avail. It is not to be trusted. The medical inspectors do not seem to understand the difference between idiocy and lunacy—between the entire absence of a function or organ and the diseases of a function or organ. This man A. 2. 11, will, I have no doubt, be able to tell his name, the nature of his offence, the day of the month, the date of the beginning and expiration of his sentence, and answer any ordinary simple question; but that his mind is diseased admits of no doubt. At present it is a horrible duel between himself and the doctor.

The doctor is fighting for a theory. The man is fighting for his life. I am anxious that the man should win. But let the whole case be examined into by experts who understand brain-disease, and by people of humane feelings who have still some common-sense and some pity. There is no reason that the sentimentalist should be asked to interfere. He always does harm. He culminates at his starting point. His end, as his origin, is an emotion.

The case is a special instance of the cruelty inseparable from a stupid system, for the present Governor of Reading is a man of gentle and humane character, greatly liked and respected by all the prisoners. He was appointed in July last, and though he cannot alter the rules of the prison system, he has altered the spirit in which they used to be carried out under his predecessor. He is very popular with the prisoners and with the warders. Indeed he has quite elevated the whole tone of the prison-life. Upon the other hand, the system is of course beyond his reach as far as altering its rules is concerned. I have no doubt that he sees daily much of what he knows to be unjust, stupid, and cruel. But his hands are tied. Of course I have no knowledge of his real views of the case of A. 2. 11, nor, indeed, of any of his views on our present system. I merely judge him by the complete change he brought about in Reading Prison. Under his predecessor the system was carried out with the greatest harshness and stupidity.—I remain, Sir, your obedient servant,

OSCAR WILDE.

France, May 27th, 1897.

Transcriber's notes:

The following is a list of changes made to the original. The first line is the original line, the second the corrected one.

whom Warder Martin gave the buscuits, the child was
whom Warder Martin gave the biscuits, the child was

sight of him at the corner of the stoneyard, walking in
sight of him at the corner of the stone-yard, walking in

*** END OF THE PROJECT GUTENBERG EBOOK CHILDREN IN
PRISON AND OTHER CRUELITIES OF PRISON LIFE ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.